

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1984

By: Ranson

AS INTRODUCED

An Act relating to domestic violence; providing purpose; defining terms; requiring individuals in certain vehicles to be notified of certain information; providing for severability; providing exception; providing that certain individuals shall not be subject to liability; directing certain providers to provide certain process on website; providing features process shall contain; directing provider to inform driver of certain alert; directing driver to provide certain information; prohibiting provider from providing certain information to certain individual; prescribing duties of provider; providing that action taken shall not impact legal ownership of vehicle; directing provider to provide certain mechanism; providing requirements for mechanism; prohibiting notification; providing vehicles the act shall apply to; providing when the act shall apply to certain vehicles; providing for noncodification; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law not to be codified in the Oklahoma Statutes reads as follows:

The Legislature finds and declares the following:

A. Domestic abuse, stalking, dating violence, sexual assault, human trafficking, and related abuse are life-threatening issues

1 that have lasting and harmful effects on individuals, families, and
2 communities.

3 B. Abuse survivors often lack resources, options, and
4 meaningful support when establishing independence from an abuser,
5 including the barriers of financial insecurity and limited access to
6 reliable means to maintain essential connections with family, social
7 safety networks, employers, and support services. Abuse survivors
8 may share a car title with an abusive partner, and safe access to an
9 automobile can be a lifeline for an abuse survivor.

10 C. Abusive partners increasingly use technological and
11 communication tools to exercise control over, monitor, and abuse
12 their victims. Cases of technology-enabled stalking and abuse
13 involving vehicles are increasing as automakers include app-
14 connected remote access and digital features. Through these apps,
15 abusive partners are tracking, surveilling, and intimidating abuse
16 survivors through location-tracking and remote-control functions to
17 turn on the ignition, adjust the vehicle's climate, lock doors, turn
18 off electric charging, honk the horn, record video footage and
19 audio, and use other means of electronically or remotely controlling
20 the vehicle. Tracking can be viewed in real time, or location
21 history records can be accessed and reviewed at a later time.

22 D. Tracking often occurs unbeknownst to an abuse victim, who
23 may be unaware that the vehicle is app-connected or that an abusive
24 partner has remote access through such technologies as mobile phone

1 wireless connectivity and location data capabilities that are
2 manufactured into vehicles.

3 E. Safeguards within vehicle design and remote access can
4 prevent future abuse, including requiring app-connected and tracking
5 notifications to be designed to provide knowledge of who has
6 vehicular access.

7 F. According to privacy researchers and as reported in the *New*
8 *York Times*, modern vehicles have been called smartphones with wheels
9 because they are Internet-connected and have myriad methods of data
10 collection, from cameras and seat weight sensors to records of how
11 hard you brake and corner. Most drivers do not realize how much
12 information their cars are collecting and who has access to it.

13 G. Under the federal Safe Connections Act of 2022, survivors of
14 domestic abuse are empowered to protect themselves and their loved
15 ones by requiring telecommunications providers, upon request, to
16 separate their mobile phone accounts from the accounts of their
17 abusers, but the law does not extend to vehicular technology.

18 H. It is the intent of this act to end stalking and abuse by
19 abusive partners who can access connected vehicle service.

20 SECTION 2. NEW LAW A new section of law to be codified
21 in the Oklahoma Statutes as Section 1901 of Title 47, unless there
22 is created a duplication in numbering, reads as follows:

23 Unless the context requires otherwise, for purposes of this act:
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1 1. "Account holder" means a person who is a party to or a user
2 of services provided under a contract for connected vehicle service
3 with a covered provider, and includes, but is not limited to, a
4 subscriber, customer, or registered user;

5 2. "Connected vehicle location access" is a type of connected
6 vehicle service that allows a person who is outside of a vehicle,
7 excluding a covered provider or vehicle cellular data provider, to
8 view or track the location of the vehicle, including, but not
9 limited to, a location determined by a Global Positioning System
10 (GPS), whether through the Internet, an app-based technology, or any
11 other remote wireless connectivity technology;

12 3. "Connected vehicle service" means any capability provided by
13 or on behalf of a vehicle manufacturer that enables a person,
14 excluding a covered provider or vehicle cellular data provider, to
15 remotely obtain data from, or send commands to, a vehicle, which may
16 be accomplished through a software application that is designed to
17 be operated on a mobile device;

18 4. "Connected vehicle service account" means an account or
19 other means by which a person enrolls in or obtains access to a
20 connected vehicle service;

21 5. "Connected vehicle service request" means a request by a
22 driver to terminate a person's access to connected vehicle service;
23 and
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1 6. "Covered provider" means a vehicle manufacturer or an entity
2 acting on behalf of the vehicle manufacturer that provides connected
3 vehicle service.

4 SECTION 3. NEW LAW A new section of law to be codified
5 in the Oklahoma Statutes as Section 1902 of Title 47, unless there
6 is created a duplication in numbering, reads as follows:

7 A vehicle with connected vehicle service shall clearly indicate
8 to a person who is inside the vehicle when a person who is outside
9 the vehicle has accessed either of the following:

- 10 1. Connected vehicle service; or
- 11 2. Connected vehicle location access.

12 SECTION 4. NEW LAW A new section of law to be codified
13 in the Oklahoma Statutes as Section 1903 of Title 47, unless there
14 is created a duplication in numbering, reads as follows:

15 The provisions of this act are severable. If any provision of
16 this act or its application is held invalid, that invalidity shall
17 not affect other provisions or applications that can be given effect
18 without the invalid provision or application.

19 SECTION 5. NEW LAW A new section of law to be codified
20 in the Oklahoma Statutes as Section 1904 of Title 47, unless there
21 is created a duplication in numbering, reads as follows:

22 This act does not apply to vehicles owned or operated by a
23 rental company.

1 SECTION 6. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1905 of Title 47, unless there
3 is created a duplication in numbering, reads as follows:

4 A covered provider or any officer, director, employee, vendor,
5 or agent of a covered provider shall not be subject to liability for
6 any claims deriving from an action taken in compliance with this
7 act.

8 SECTION 7. NEW LAW A new section of law to be codified
9 in the Oklahoma Statutes as Section 1906 of Title 47, unless there
10 is created a duplication in numbering, reads as follows:

11 A. A covered provider shall provide a process that includes a
12 prominent and clearly visible link entitled "HOW TO DISCONNECT
13 REMOTE VEHICLE ACCESS" on its Internet website to complete both of
14 the following transactions:

- 15 1. Submit a connected vehicle service request; and
- 16 2. Obtain a new connected vehicle service account.

17 B. A covered provider shall ensure that all communications
18 provided pursuant to this act are clear, concise, and written in
19 accessible language. It is imperative that drivers, particularly
20 those who are abuse survivors, receive support and clear guidance
21 throughout the process for submitting a connected vehicle service
22 request or obtaining a new connected vehicle service account.

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1 SECTION 8. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1907 of Title 47, unless there
3 is created a duplication in numbering, reads as follows:

4 To enhance transparency and communication, the process to submit
5 a connected vehicle service request or obtain a new connected
6 vehicle service account shall be efficient, secure, user-friendly,
7 and include all of the following features:

8 1. Upon submission of a connected vehicle service request or
9 request to obtain a new connected vehicle service account, the
10 covered provider shall automatically send a confirmation email to
11 the driver, acknowledging the receipt of the request. This email
12 shall contain a reference number for the request and an outline of
13 the subsequent steps in the process;

14 2. Upon completing the review of the request, the covered
15 provider shall inform the driver of the action taken, including, as
16 applicable, whether a person's access to connected vehicle service
17 has been terminated, or if additional information or proof of legal
18 possession of the vehicle is needed. This alert shall clearly state
19 any relevant details or further actions required from the driver to
20 complete a successful connected vehicle service request; and

21 3. If a connected vehicle service request is approved, the
22 covered provider shall provide the driver with a clear explanation
23 and guidance on how to create their own connected vehicle service
24 account, if applicable, to ensure that the driver can maintain

1 control over the connected vehicle service once another person's
2 access to connected vehicle service has been terminated.

3 SECTION 9. NEW LAW A new section of law to be codified
4 in the Oklahoma Statutes as Section 1908 of Title 47, unless there
5 is created a duplication in numbering, reads as follows:

6 A. A driver shall demonstrate to a covered provider the
7 authority to terminate a person's access to connected vehicle
8 service by providing both of the following:

9 1. The vehicle identification number; and

10 2. Proof of legal possession of the vehicle, which may be a
11 legal title to the vehicle, or a dissolution decree, temporary court
12 order, or domestic violence restraining order that awards possession
13 or exclusive use of the vehicle to the driver. A court order
14 awarding sole possession or exclusive use of a vehicle shall take
15 priority over a vehicle title showing joint ownership for purposes
16 of this act.

17 B. A covered provider shall not require a driver to provide any
18 proof of legal possession other than what is required in subsection
19 A of this section to establish the authority to terminate a person's
20 access to connected vehicle service.

21 C. A covered provider shall not require a driver to take any
22 action to terminate a person's access to connected vehicle service
23 other than what is set forth in this section, including, but not
24 limited to, requiring any of the following:

1 1. Payment of a fee, penalty, or other charge to complete a
2 connected vehicle service request;

3 2. Maintaining or extending the term of a connected vehicle
4 service account;

5 3. Approval by any account holder, including, but not limited
6 to, the named account holder, of the change in access; or

7 4. An increase in the rate charged for the connected vehicle
8 service.

9 D. A covered provider shall terminate a person's access to
10 connected vehicle service within two (2) business days after the
11 date of receiving a completed request from a driver who meets the
12 requirements of this section.

13 SECTION 10. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1909 of Title 47, unless there
15 is created a duplication in numbering, reads as follows:

16 A. If a covered provider terminated a person's access to
17 connected vehicle service in response to a connected vehicle service
18 request, the covered provider shall not provide to the person any
19 data or information regarding the driver, the vehicle, or any new
20 connected vehicle service account that was generated after that
21 person's access to the connected vehicle service was terminated.

22 B. A covered provider shall ensure that all personal
23 information provided during the process to terminate a person's
24 access to connected vehicle service is handled with appropriate

1 security and privacy, adhering to relevant data protection laws and
2 regulations.

3 C. A covered provider and any officer, director, employee,
4 vendor, or agent thereof shall treat any information submitted by a
5 driver pursuant to this act as confidential and shall comply with
6 applicable privacy laws.

7 D. A covered provider shall not share information submitted by
8 a driver pursuant to this act with any third party without the
9 affirmative consent of the driver, unless sharing that information
10 is required to effectuate a connected vehicle service request.

11 E. Nothing in this section shall preclude a covered provider
12 from responding to a court order or warrant.

13 SECTION 11. NEW LAW A new section of law to be codified
14 in the Oklahoma Statutes as Section 1910 of Title 47, unless there
15 is created a duplication in numbering, reads as follows:

16 The termination of connected vehicle service pursuant to this
17 act shall not be deemed to impact legal ownership of a vehicle.

18 SECTION 12. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 1911 of Title 47, unless there
20 is created a duplication in numbering, reads as follows:

21 If a vehicle includes connected vehicle location access, a
22 covered provider shall provide a mechanism that can be used by a
23 driver who is inside a vehicle to immediately disable connected
24 vehicle location access.

SECTION 13. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1912 of Title 47, unless there is created a duplication in numbering, reads as follows:

A mechanism for disabling connected vehicle location access shall meet all of the following requirements:

1. Be prominently located and easy to use;

2. Not require access to, or use of, a remote or online application;

3. Not require account creation, a password, or login information.

A vehicle manufacturer may require a driver to input a mobile number associated with the connected vehicle service account. If a vehicle manufacturer requires a driver to input a mobile number in order to disable the connected vehicle location access connection, it shall not require any further information in order to allow the driver to disable the connection, including, but not limited to, using that number as part of a two-factor authentication process that results in sending a code to the mobile number; and

4. Allow connected vehicle location access that has been disabled from inside the vehicle to be enabled only by a driver who is located inside the vehicle.

SECTION 14. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 1913 of Title 47, unless there is created a duplication in numbering, reads as follows:

1 Disabling the connected vehicle location access from inside the
2 vehicle shall not result in an account holder of the connected
3 vehicle service, vehicle manufacturer, or a third-party service
4 provider receiving any notification related to the connected vehicle
5 location access being disabled, including, but not limited to, an
6 alert, email, text, or telephone call.

7 SECTION 15. NEW LAW A new section of law to be codified
8 in the Oklahoma Statutes as Section 1914 of Title 47, unless there
9 is created a duplication in numbering, reads as follows:

10 The provisions of this act shall apply:

11 1. On the effective date of this act for vehicles that have
12 connected vehicle service on the effective date of this act;

13 2. On July 1, 2026, for vehicles manufactured prior to January
14 1, 2028, that have connected vehicle location access and have the
15 capability to receive software updates that provide for the
16 functionality required by Sections 12 through 15 of this act; and

17 3. On January 1, 2028, for vehicles manufactured on or after
18 January 1, 2028, that have connected vehicle location access.

19 SECTION 16. This act shall become effective November 1, 2025.
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